

		[¶] (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.” Rule 3.1362 further provides “[m]erely demonstrating that the notice was sent to the client’s last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current.” (Rules of Court, Rule 3.1362, subd. (d)(2).) The moving party to give notice.
1:30 p.m.		
1	Kim vs. Choi	Defendant/Cross-Complainant Jimi Choi’s motion for summary judgment and/or adjudication is DENIED. Defendant/Cross-Complainant’s objections to the declaration of Simon Kim are OVERRULED. <u>Page Limit Violation</u> As a preliminary matter, Defendant and Cross-Complainant Choi’s (hereinafter referred to as “Defendant” or “Choi”) motion for summary judgment is <u>48 pages</u>. The memorandum of points and authorities begins on page 3 and ends on page 51. Cal. R. Ct, rule 3.1113, subd. (d), provides: “Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages. In a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 20 pages. No reply or closing memorandum may exceed 10 pages. The page limit does not include the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service.” According to Cal. R. Ct, rule 3.1113, subd. (g), “A memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper.” Plaintiff and Cross-Defendant Kim (hereinafter “Plaintiff” or “Kim”) objected to the length of Defendant’s memorandum. However, the court notes that Plaintiff’s opposition addressed all the major points of Defendant’s motion within an 8-page Opposition. Plaintiff had 12 pages to spare if he wanted to make additional arguments. Accordingly, Plaintiff does not appear to have been prejudiced by this violation, and the court will consider the motion. <u>General Standard</u>